THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH-II, CHANDIGARH

Item No. 1

CP (CAA) No. 30/Chd/HP of 2023
(2nd Motion)

Under Sections 230 to 232 of the Companies Act, 2013 read with Sections 66 of the Companies Act, 2013 and Rules 3 and 18 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF ARRANGEMENT OF:

Bagrrys India Pvt Ltd
with its registered office at
Plot No. 28 and 41,
Himuda Industrial Area,
Bhatoli Kalan, Baddi-173 205,
District-Solan, Himachal Pradesh
CIN: U 15497 HP 1986 PTC 006447
PAN: AAB CB 8144 N

.... Petitioner No. 1/Demerged Company

And

Bagrrys Pvt Ltd
with its registered office at
Plot No. 28 and 41,
Himuda Industrial Area,
Bhatoli Kalan, Baddi-173 205,
District-Solan, Himachal Pradesh
CIN: U 15490 HP 2023 PTC 009779
PAN: AAL CB 3627 J

.... Petitioner No. 2/Resulting Company

Present:

Mr. Kartikeya Goel, Advocate for the Petitioner Companies.

Heard the submissions made by learned counsel for the petitioners. Let notice be issued as prayed for in Prayer (c.) of the petition. This is a joint second motion Company Petition filed by the Petitioner Companies, namely; **Bagrrys India Pvt Ltd** (for short hereinafter referred to as Petitioner Company No. 1/ Demerged Company) and **Bagrrys Pvt Ltd** (for short hereinafter referred to as Petitioner Company No. 2/Resulting Company) under Sections 230 & 232 of the Companies Act, 2013, read with Section 66 of the Companies Act, 2013 (the Act) and other applicable provisions of the Act read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 (the Rules) and other applicable provisions, if any.

2. In their Petition, the Petitioner Companies have prayed inter alia to issue directions in relation to publication in press to be effective and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for objections.

3. The first motion Application seeking directions for dispensing/convening the meetings of the Shareholders, Secured and Unsecured Creditors of the Petitioner Companies was filed before this Tribunal vide Company Application No. CA (CAA) No. 21/Chd/HP of 2023 and based on such Application, necessary directions were issued on 13th June, 2023 (date of pronouncement). In the order dated 13th June, 2023 (date of pronouncement), the meetings of the Equity Shareholders of the Demerged Company and the Resulting Company were dispensed with for the reasons mentioned in the aforesaid order. It was further

directed to convene the separate meetings Secured Creditors and Unsecured Creditors of the Demerged Company, through video conferencing with facility of remote e-voting, to consider and approve the proposed Scheme of Arrangement. The Resulting Company did not have any Secured Creditor or Unsecured Creditor.

4. In compliance of the directions issued by this Tribunal, the Chairperson, Alternate Chairperson and Scrutinizer were also appointed and they have filed their reports which are as under:

Sl. No.	Meeting of	Chairperson/Alternate Chairperson/Scrutinizer	Chairperson's Report		Date of meeting
			Diary No. of Report	Date of Report	
1.	Secured Creditors of Applicant Demerged Company	Mr Pradeep Nauharia, Advocate, Chairperson Ms Veenu Marwaha, Advocate, Alternate Chairperson Mr Savdesh Pal Goyal, Chartered Accountant, Scrutinizer	01081/2 dated 10.08.2023	07.08.2023	04.08.2023
2.	Unsecured Creditors of Applicant Demerged Company	Mr Pradeep Nauharia, Advocate, Chairperson Ms Veenu Marwaha, Advocate, Alternate Chairperson Mr Savdesh Pal Goyal, Chartered Accountant, Scrutinizer	01081/2 dated 10.08.2023	07.08.2023	04.08.2023

As per Chairperson's Reports dated 07.08.2023, the Scheme of Arrangement was approved unanimously by the Secured Creditors and Unsecured Creditors of the Demerged Company present and voting.

5. The notice of hearing will be advertised in **"**The Indian Express" (English, Chandigarh and Himachal Pradesh Edition) and "Dainik Bhaskar**"** (Hindi, Himachal Pradesh Edition) not less than 10 days before the next date fixed for hearing.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the Petition on the following Authorities namely, a) Central Government through the office of the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, Himachal Pradesh, Chandigarh; and (c) the Income Tax Department, in the respective circle/ward where these Companies are assessed or through the nodal office by mentioning the PAN number of the Petitioner Companies along with a copy of this petition by speed post immediately.

7. The Petitioner Companies shall at least 7 days before the date of hearing of the Petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed

herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The Petitioner Companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 19.10.2023 for the consideration of the approval of the scheme as contemplated amongst the Petitioner Companies.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Umesh Kumar Shukla)
Member (Technical)

Sd/-
(Dr. P.S.N. Prasad)
Member (Judicial)

August 21, 2023
SA/VN